

reasonable cost for filing and motion fees in this action. The request to tax/strike this cost is DENIED.

Item 4: Deposition Costs

Defendant requests that the entire \$21,625.69 in deposition costs be taxed/stricken. Alternatively, Defendant requests that \$11,462.30 costs for defense expert witness depositions be taxed and \$6,917.20 for the taking of Plaintiff's non-retained experts be taxed.

"Section 1033.5, subdivision (a)(3), permits a prevailing party to recover the cost of '[t]aking, video recording, and transcribing necessary depositions including an original and one copy of those taken by the claimant....'" (*Chaaban v. Wet Seal, Inc.* (2012) 203 Cal.App.4th 49, 56.)

" 'The necessity for a deposition and for the related expenditures is a question for the trial court's sound discretion. [Citation.] The burden of proof that the deposition was unnecessary ... is on the party seeking to have that item taxed.... [Citation.]' [Citation.]" (*Silver v. Gold* (1989) 211 Cal.App.3d 17, 26.) The burden of proof is on the party challenging the deposition cost "to present some evidence that the [Plaintiff] had taken unnecessary depositions." Where, on its face, the cost item was proper and uncontroverted, the cost is properly allowed. (*M. C. & D. Capital Corp. v. Gilmaker* (1988) 204 Cal.App.3d 671, 680.)

"The recovery of deposition costs does not depend on whether the deponent ultimately testifies at trial." *Chaaban v. Wet Seal, Inc.*, 203 Cal. App. 4th 49, 57 (2012).

First, Defendant argues that Plaintiff fails to provide evidence of items 4(g) and 4 (h). Plaintiff's opposition, however, does offer sufficient evidence of these charges. (See Opposition, Ex. 7-9).

Second, Defendant contends that the deposition of Michael Weinstein, M.D. and Luke Macyszyn, M.D. were Defendant's retained medical experts. Defendant contends that Plaintiff is not allowed to recover expert witness fees as a cost item.

Expert fees not ordered by the court are generally not allowable as costs, except when expressly authorized by law. (Code Civ. Proc., § 1033.5, subd. (b)(1).)

However, expert fees that are incurred post-998 offer are recoverable that are "actually incurred and reasonably necessary in either, or both, preparation for trial or arbitration, or during trial or arbitration, of the case by the plaintiff, in addition to plaintiff's costs."" (Code Civ. Proc., § 998, subd. (d); see *Rojas v. HSBC Card Services Inc.* (2023) 93 Cal.App.5th 860, 897). As the court found above, Plaintiff made a valid §998 offer, which Defendant rejected, and obtained an outcome at trial that was more favorable. Each of Defendant's experts were deposed after defendant refused Plaintiff's §998 offer. Costs related to Plaintiff's deposing Defendant's two experts are recoverable.

Finally, Defendant argues that Plaintiff cannot seek costs incurred for deposing Plaintiff's treating physicians, who were non-retained experts. Again, Plaintiff incurred the costs to take the depositions of both non-

retained experts after defendant refused Plaintiff's §998 offer. These costs are recoverable.

The court has reviewed Plaintiff's depositions costs and finds that the costs were reasonable and necessary for litigation.

Item 8: Witness Fees

Defendant seeks to tax/strike \$11,984.44 in witness fees. Defendant argues, again, that expert witness fees are generally not recoverable. However, as stated above, Plaintiff's expert witness fees incurred after Defendant's rejection of a valid 998 offer are recoverable. Defendant has failed to meet its burden to establish that any of the witness fees sought are unreasonably high. Plaintiff has sufficiently substantiated the reasonableness and veracity of these costs. (See Opp. Flores Decl. §§ 21-23 & Ex. 9).

Item 11: Court Reporter Fees

Code of Civil Procedure Section 1033.5(a)(11) provides for the recovery of "[c]ourt reporter fees as established by statute." (See *also* Cal. Rules Ct., Rule 2.956 [providing that "[i]f the services of an official court reporter are not available for a hearing or trial in a civil case, a party may arrange for the presence of a certified shorthand reporter to serve as an official pro tempore reporter. It is that party's responsibility to pay the reporter's fee for attendance at the proceedings, but the expense may be recoverable as part of the costs, as provided by law"].) The "catchall" of subdivision (c)(4) provides that "[i]tems not mentioned in this section and items assessed upon application may be allowed or denied in the court's discretion" if the prevailing party shows the cost was reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. (Code Civ. Proc., § 1033.5(c).)

Defendant argues that Plaintiff does not identify a statute or order that allows Plaintiff to recover such costs. Also Defendant points out a discrepancy regarding the amount of costs sought.

Plaintiff seeks reimbursement for court reporter fees recoverable by statute, not by transcript costs. "The fees and charges of the certified court shorthand reporter shall be recoverable as taxable costs by the prevailing party as otherwise provided by law." (Gov. Code §68086(d)(2)). Plaintiff has established that Plaintiff subtracted all daily transcript services, transcript costs, and rough drafts from this cost item.

Plaintiff does concede a clerical error and does not object to a reduction of court reporter fees to \$19,547.86.

As such, the court will tax \$51.97 from Plaintiff's requested court reporter fees.

Item 13: Models, Enlargements, and Photocopies

Defendant seeks to tax/strike the \$1,375.43 in costs as excessive and unsubstantiated.